

Shabanam Begam v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 24 April 2026 · Writ - C No. 14478 of 2026 · **Interlocutory; landlord's son added as respondent no.4; listed 22 May 2026 as fresh. Connection, indemnity and landlord consent not decided**

HEADNOTE

An interlocutory order on a tenant's writ against a licensee's demand that she obtain her landlord's consent for a new connection. The licensee pointed to Clause 4.4 of the U.P. Electricity Supply Code, 2005 (indemnity where the tenant cannot get consent; prepaid under 4.4(vii) for jhuggi/hutment/patri shopkeepers) and said arrears of a defaulting tenant attach to the premises. The Court added the deceased landlord's son as a party and listed the matter. It did not direct a connection, apply the indemnity, or decide whether consent is required.

FACTUAL SUMMARY

Shabanam Begam challenged a 17 October 2025 communication requiring her landlord's consent for a connection. She has a tenancy agreement dated 8 February 2008; the landlord is deceased and his son wants her evicted, so she cannot get consent. She seeks a direction to give the connection. Licensee's counsel invoked Clause 4.4 indemnity where a tenant cannot obtain consent, said unpaid consumption would attach to the premises (and thus visit the landlord), and noted prepaid supply under Clause 4.4(vii) for jhuggi/hutment/patri shopkeepers — the petitioner wants a regular connection. The son, Akash Gaurav, was added as respondent no.4.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant connection without landlord consent — Clause 4.4 indemnity and 4.4(vii) prepaid raised; not applied; landlord's son added; listed

HOLDING

No construction of Clause 4.4. The licensee submitted that supply can be given on indemnity where the tenant cannot obtain landlord consent, that arrears then attach to the premises, and that prepaid connection under 4.4(vii) is for jhuggi/hutment/patri shopkeepers, whereas the petitioner wants a regular connection. The Court added Akash Gaurav (son of the deceased landlord) as respondent no.4, granted leave to amend, and listed 22 May 2026 as fresh. No direction to give the connection. ¶ 1-4

FLAG Interlocutory only. Clause 4.4 indemnity (SCJ-006, SCJ-027 occupier-on-indemnity cluster) and 4.4(vii) prepaid were invoked by the licensee, not applied. The tension — indemnity without consent vs arrears attaching to the landlord's premises — is on the table, not decided.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MUST GIVE A REGULAR CONNECTION ON A CLAUSE 4.4 INDEMNITY WITHOUT THE LANDLORD'S CONSENT

Raised by both sides; not decided. Listed after adding the landlord's son. ¶ 1-2, 4

NOT DECIDED — WHETHER UNPAID CONSUMPTION BY A TENANT WHO OBTAINED SUPPLY WITHOUT LANDLORD CONSENT ATTACHES TO THE PREMISES AND VISITS THE LANDLORD

Submitted by licensee's counsel on query; no finding. ¶ 2

NOT DECIDED — WHETHER CLAUSE 4.4(VII) PREPAID (JHUGGI/HUTMENT/PATRI SHOPKEEPERS) IS THE AVAILABLE MODE RATHER THAN A REGULAR CONNECTION

Raised by licensee; petitioner wants regular connection. Not decided. ¶ 2

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.